

24VECV05735 24VECV05735

County: los-angeles

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Case Number: 24VECV05735 Hearing Date: August 11, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

MKP

Locksmith Inc, et al.,

Plaintiff.

v.

Jaguar

Land Rover North America, LLC,

Defendant.

Case Number Department

24VECV05735 107

COURT'S [TENTATIVE]
ORDER RE:

Motion
to Compel Deposition

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

or about May 13, 2023, Plaintiffs MKP Locksmith Inc and Pouria Ghafari (“Plaintiffs”) purchased a 2023 Land Rover Defender. (Complaint ¶¶ 3, 1.) The Vehicle was defective. (Complaint ¶ 4.)

On

November 19, 2024, Plaintiffs filed a complaint against Defendants Jaguar Land Rover North America, LLC, and Does 1 through 30, alleging causes of action for: (1) fraud and deceit; (2) breach of written warranty pursuant to the Magnuson-Moss Warranty Act; (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act; (4) breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act; (5) breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act; (6) violation of Business & Professions Code section 17200, et seq.; (7) violation of Business & Professions Code section 17500, et seq.; (8) negligence; (9) strict liability; and (10) breach of contract.

On

April 8, 2026, Plaintiff Pouria Ghafari (“Plaintiff”) filed a motion to compel further responses to Plaintiff’s Requests for Admission, Set Three (3) (the “Motion to Compel Further Responses to RFAs”) and a motion to compel further responses to Plaintiff Pouria Ghafari’s Specially Prepared Interrogatories to Jaguar Land Rover North America, LLC Set Three (3) (the “Motion to Compel Further Responses to Special Interrogatories”). On April 9, 2026, Plaintiff filed a motion to compel further responses to Plaintiff Pouria Ghafari’s Request for Production to Jaguar Land Rover North America, LLC Set Three (3) (the “Motion to Compel Further Responses to RFPs”). On May 26, 2026, Plaintiff filed a motion to compel deposition of person(s) most knowledgeable at Defendant Jaguar Land Rover North America, LLC (the “Motion to Compel Deposition”).

On

June 1, 2026, Defendant Jaguar Land Rover North America, LLC (“Defendant”)

filed an opposition to the Motion to Compel Further Responses to RFAs. On June 2, 2026, Defendant filed an opposition to the Motion to Compel Further Responses to Special Interrogatories. On June 3, 2026, Defendant filed an opposition to the Motion to Compel Further Responses to RFPs.

On

June 5, 2026, Plaintiff filed a reply to the opposition to the Motion to Compel Further Responses to RFAs.

On

July 24, 2026, Defendant filed an opposition to the Motion to Compel Deposition.

On

August 3, 2026, Plaintiff filed a reply to the opposition to the Motion to Compel Deposition. On August 4, 2026, Plaintiff filed replies to the oppositions to the Motion to Compel Further Responses to Special Interrogatories and the Motion to Compel Further Responses to RFPs.

II.

MOTION

TO COMPEL FURTHER RESPONSES TO RFPS, MOTION TO COMPEL FURTHER RESPONSES TO RFAS, AND MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Meet and Confer

Motions to compel further responses to interrogatories, requests for admission, and demands for inspection, copying, testing, or sampling must be accompanied by meet and confer declarations.¿ (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2033.290, subd. (b)(1), 2031.310, subd. (b)(2).)¿ “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

Plaintiff's

counsel sent Defendant's counsel meet and confer letters. (Margarian Declaration (RFAs) ¶¶ 11-17; Margarian Declaration (Special) ¶¶ 11-17; Margarian Declaration (RFPs) ¶¶ 11-17.) Meeting and conferring by letter is insufficient under Code of Civil Procedure section 2016.040.

Further,

Plaintiff's counsel's meet and confer letters did not sufficiently attempt to informally resolve each issue presented by the Motion to Compel Further Responses to RFPs, Motion to Compel Further Responses to Special Interrogatories, and Motion to Compel Further Responses to RFAs. (Margarian Declaration (RFAs) Ex. C pdf pp. 38-40; Ex. D pdf pp. 42-43; Margarian Declaration (Special) Ex. C pdf pp. 48-50; Ex. D pdf pp. 52-53; Margarian Declaration (RFPs) Ex. C pdf pp. 39-41; Ex. D pdf pp. 43-44.)

Plaintiff

did not satisfy the meet and confer requirements.

Timeliness

Motions to compel further responses to a demand for inspection, copying, testing, or sampling, interrogatories, and requests for admission must be brought within 45 days of receiving the challenged responses, or as otherwise agreed upon in writing.¿ (Code Civ. Proc. §§ 2031.310, subd. (c), 2030.300, subd. (c), 2033.290, subd. (c).)

Electronic service extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Defendant served Plaintiff with responses by electronic service on February 5, 2026. (Margarian Declaration (Special) ¶ 7, Ex. B pdf pp. 45-46; Margarian Declaration (RFPs) ¶ 7, Ex. B pdf pp. 36-37; Margarian Declaration (RFAs) ¶ 7, Ex. B pdf pp. 35-36.) Defendant granted Plaintiff a 15-day extension. (Margarian Declaration (RFAs) ¶ 16; Margarian Declaration (RFPs) ¶ 16; Margarian Declaration (RFPs) ¶ 16.)

The Motion to Compel Further Responses to Special Interrogatories and Motion to Compel Further Responses to RFAs were timely filed on April 8, 2026.

Plaintiff filed the Motion to Compel Further Responses to RFPs on April 9, 2026, which was one day after the 15-day extension. Thus, the Motion to Compel Further Responses to RFPs is denied as untimely.

Legal Standard

If the responding party responds to interrogatories with inappropriate objections or evasive or incomplete answers, the propounding party may move for an order compelling a further response. (Code Civ. Proc. §2030.300, subd. (a).)

“On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

Discussion

Plaintiff

moves to compel Defendant to provide further responses to Specially Prepared Interrogatories, Set Three (3) and Requests for Admission, Set Three (3). (Memorandum (Special) p. 5; Memorandum (RFAs) p. 5.)

Defendant

represented in its Informal Discovery Statement that it provided supplemental responses to Plaintiff's discovery requests on June 6, 2026. (Defendant's IDC Statement filed 07/23/26.)

Further,

Plaintiff's counsel's declaration submitted with the reply to the opposition to the Motion to Compel Further Responses to Special Interrogatories confirms that on June 5, 2026, Defendant provided unverified supplemental responses to Special Interrogatories, Set Three. (Margarian Reply Declaration (Special) ¶ 14.)

In

reply, Plaintiff requests the court order Defendant to execute verifications and provide further responses to certain Special Interrogatories “with Defendant's objections overruled to the extent they are without merit or too general.” (Reply (Special) p. 11.)

The

supplemental responses are not before the court and have not been the subject of noticed motions. As such, the court will not order Defendant to provide further responses to the supplemental responses.

The

original responses have been rendered moot because Defendant served Plaintiff with supplemental responses. Thus, the Motion to Compel Further Responses to Special Interrogatories and Motion to Compel Further Responses to RFAs are denied as moot.

Sanctions

Plaintiff

requests the court impose monetary sanctions against Defendant and Defendant's counsel. (Memorandum (Special) p. 17; Memorandum (RFAs) p. 16.)

Code

of Civil Procedure section 2030.300, subdivision (d) states: "[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Code

of Civil Procedure section 2033.290, subdivision (d) states: "[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

California Rules

of Court, rule 3.1348(a) states:

The court may award sanctions under the

Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

The court denies
the Motion to Compel Further Responses to RFPs, Motion to Compel Further
Responses to Special Interrogatories, and Motion to Compel Further Responses to
RFAs and determines no sanctions are warranted here.

III.

MOTION TO COMPEL
DEPOSITION

Meet and Confer

A

motion to compel a deposition must “be accompanied by a meet and confer
declaration under section 2016.040, or, when the deponent fails to attend the
deposition and produce the documents, electronically stored information, or
things described in the deposition notice, by a declaration stating that the
petitioner has contacted the deponent to inquire about the
nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Plaintiff’s

counsel states Defendant said it would not produce its person most
knowledgeable for deposition and Plaintiff’s counsel sent Defendant’s counsel
two meet and confer letters requesting dates available for the deposition.
(Margarian Declaration (Deposition) ¶¶ 7-11.)

Plaintiff’s

counsel was required to meet and confer in person, by telephone, or by
videoconference. (Code Civ. Proc., § 2016.040, subd. (a).) Plaintiff’s
counsel’s meet and confer letters were insufficient.

Plaintiff failed

to satisfy the meet and confer requirement.

“[N]ot

every finding that additional informal resolution efforts are required can be
categorized as a failure so egregious as to justify summary denial of
discovery. Such categorical rulings should be reserved for cases of clear
intent to burden or harass, cases of clear flaunting of statutory
responsibilities, cases of established track records of lack of good faith, and
the like.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1296.)

The court notes

Plaintiff's counsel failed to satisfy their meet and confer obligations for all four Motions that are presently before the court. The court considers this repeated failure a clear flaunting of Plaintiff's statutory responsibilities.

The amendment to Code of Civil Procedure section 2016.040, subdivision (a) went into effect months before Plaintiff's counsel filed the Motion to Compel Deposition. Plaintiff's counsel, therefore, had sufficient notice of the amendment to sufficiently meet and confer.

The Motion to

Compel Deposition is denied.

Plaintiff

requests sanctions against Defendant. (Memorandum (Deposition) p. 9.) Plaintiff has not successfully moved to compel the deposition. (Code Civ. Proc., § 2025.450, subd. (g)(1).) Plaintiff's request for sanctions is denied.

CONCLUSION

For the

foregoing reasons, the Motion to Compel Further Responses to RFPs, Motion to Compel Further Responses to Special Interrogatories, Motion to Compel Further Responses to RFAs, and Motion to Compel Deposition are denied. Plaintiff's requests for sanctions are also denied

Dated: August 11, 2026 _____ Hon. Eric Harmon

Judge

of the Superior Court